



POLICE DEPARTMENT

August 7, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-031920
Police Officer Michael Comparato	:	
Tax Registry No. 959562	:	
23 Precinct	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Deanna Everett-Johnson, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Stuart London, Esq.
Worth, London, & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:
HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Michael Comparato, on or about February 6, 2021, at approximately 1950 hours, while assigned to the 23 Precinct and on duty, in the vicinity of 2251 First Avenue, New York County, spoke discourteously to an individual, to wit: Police Officer Comparato said, “I don’t give a shit who searched you,” without police necessity.

P.G. 203-09, Page 1, Paragraph 2
(*now encompassed by*
A.G. 304-06)

PUBLIC CONTACT-
GENERAL

P.G. 200-02

MISSION, VISION AND
VALUES OF THE NYPD

2. Police Officer Michael Comparato, on or about November 10, 2021, at approximately 1029 hours, while assigned to the 23 Precinct and on duty, in the vicinity of 100 Church Street, New York County, in the course of an investigation by the Civilian Complaint Review Board, provided an untruthful false official statement in that when presented with his own voice on Body Worn Camera stating, “I don’t give a shit who searched you,” stated that he could not recognize the voice.

A.G. 304-10

MAKING FALSE
STATEMENTS:
UNTRUTHFUL
STATEMENT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 9, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Civilian Complaint Review Board (hereinafter “CCRB”) entered body-worn camera (hereinafter “BWC”) videos and a CCRB interview transcript and audio recording into evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of Specification 1 and Not Guilty of Specification 2.

Accordingly, I recommend a penalty of the forfeiture of five (5) vacation days.

ANALYSIS

The following is a summary of the relevant evidence presented at trial.

On February 6, 2021, Respondent, together with other members of the Public Safety Team from the 23 Precinct, approached a group of individuals congregated in front of a convenience store who were smoking marijuana¹, drinking alcohol and blocking pedestrian traffic. As Respondent and his team approached the group, one of the individuals fled on foot. Respondent and other officers chased after this individual. Ultimately, the individual was apprehended and arrested for possessing a loaded firearm in front of a convenience store.

Immediately thereafter, Respondent and other officers entered the convenience store to investigate whether there were additional weapons hidden inside. While two other officers searched the interior of the store, Respondent stood at the doorway. A civilian inside the store, who was attempting to exit, said to Respondent: “I’ve already been searched.” Respondent replied: “I don’t give a shit who searched you.” Respondent let the individual exit and did not search him.

On November 10, 2021, CCRB interviewed Respondent about this incident via an online meeting platform. At the interview, Respondent could not recall many details. The investigator then played Respondent’s BWC and asked him if he recognized the voice that made the statement: “I don’t give a shit who searched you.” Respondent asserted that he could not recognize the voice.

Specification 1: Discourtesy

At trial, Respondent testified that on February 6, 2021, he was working in his capacity as a member of the 23 Precinct’s Public Safety Team. At approximately 1950 hours, he was with

¹ It is undisputed that on February 6, 2021, smoking marijuana in public was not legal and an enforceable crime.

the other members of his team in the vicinity of 2251 1st Avenue, when he noticed a large group of people blocking pedestrian traffic, drinking and smoking marijuana on the street in front of a bodega. Respondent claimed that they were going to address the condition by stopping the group from smoking marijuana in public and issuing summonses. However, when Respondent and his partners stopped and exited their police vehicle, one of the individuals in the group fled and a chase ensued. Respondent and other officers ultimately stopped and apprehended the individual in front of a bodega. He then assisted the other officers in placing the individual in custody. Respondent testified that a loaded firearm was recovered from said individual. (Tr. 20-22)

According to Respondent, after the firearm was recovered, they continued investigating inside the bodega, to ensure that no other firearms were discarded or hidden by others in the group. Respondent asserted that two officers conducted a search inside while he stood at the doorway of the bodega ensuring their safety. He testified that there were people inside the bodega attempting to leave and blocking his view of his fellow officers. Respondent recalled that one of the people inside stated, "they already searched me," and he replied, "I don't give a shit who searched you." (Tr. 23-24)

Respondent testified that he reviewed his BWC footage several times in preparation for trial and he is now certain that it was his voice saying the words: "I don't give a shit who searched you." He asserted that when he was interviewed by CCRB, they played his BWC, but he could not hear the voice and did not know who it was. At trial, Respondent explained that he did not mean to be discourteous to the civilian when he made that statement at the door of the bodega. He added:

It was just the heat of the moment. I just fought somebody with a gun. I just -- I just ran, one of my cops got hurt. I didn't know what was going to happen. I didn't know if there was more -- more firearms on the side, I didn't know if somebody was going to shoot me from behind, the side. (Tr. 30)

Based upon a preponderance of the credible, relevant evidence I find that CCRB has proven that Respondent was discourteous to the individual in the bodega when he said: “I don’t give a shit who searched you.”

Discourtesy “may include foul language, acting in a rude or unprofessional manner (such as demeanor or tone), and flashing rude or offensive gestures that are unjustified or unwarranted with no legitimate law enforcement purpose.” (Disciplinary Matrix, p. 26) Any analysis of whether the language used by a member of service is discourteous must consider the context in which it is used. Among the factors to be considered are whether the allegedly discourteous language includes swear words, or words, which, under the circumstances presented, can objectively be seen as discourteous; whether the words spoken are disrespectful because of the time and place of their utterance; and the relationship of the parties to the conversation.

In this case, Respondent admitted using the word “shit” during his interaction with a person in the bodega who told him he had already been searched. Although Respondent testified that he did not intend to insult anyone when he made this comment, the remark is nonetheless objectively discourteous and advances no legitimate police purpose. The comment was an unnecessarily dismissive response to a civilian as he was attempting to exit the store.

Moreover, this Tribunal is not persuaded by Respondent’s assertion that the statement was made in the “heat of the moment” and therefore not sanctionable misconduct. In support of his contention, Respondent cited precedent where this Tribunal found that the use of harsh language did not rise to the level of sanctionable misconduct when a member of service was “involved in a dynamic environment that had the potential to devolve into chaos without warning.” *Disciplinary Case No. 2022-25491* (May 4, 2023) Based upon a careful review of the BWC footage offered in evidence, this was not a situation involving an actual physical

altercation or one that required the use of harsh language to communicate a directive or to deescalate an interaction with members of the public. (See CCRB Exhibit 1 at 2:18-2:27) The individual from whom a loaded gun was recovered was already in custody and the civilians in the bodega were not impeding the officers' investigation or ability to take law enforcement action. Under the circumstances presented here, I find Respondent's use of coarse language was gratuitous and inappropriate.

Based upon the foregoing, I find Respondent Guilty of Specification 1.

Specification 2: False Statement

I find however, that CCRB has failed to prove that Respondent provided a false statement to CCRB when he stated at his CCRB interview that he did not recognize who made the discourteous statement when his BWC was played.

This Tribunal closely reviewed the statements Respondent made during his CCRB interview on November 10, 2021. It is worth noting at the outset that in reading the transcript and listening to the audio version, it became clear to this Tribunal that this interview was not conducted in person, but that it occurred using an online meeting platform (i.e., Microsoft Teams, Zoom, etc.). This was evident by the fact that at various points during the interview Respondent stated that he could not see or hear the BWC that was being played and shared by the investigator. Moreover, Respondent described the audio of his BWC as "choppy" at times. (CCRB Ex. 5A at 28, 31) At one point, Respondent even suggested to the investigator how the technical issue could be resolved and stated: "It's not their fault. It's just the whole technology." (*Id.* at 31) This Tribunal takes judicial notice that technical issues of this nature are not uncommon when using such platforms.

During the CCRB interview, Respondent is shown his BWC. When the investigator begins to play the BWC, she indicates that she is beginning the video at 01:57 and asks Respondent to let her know if he does not have sound. Respondent tells the investigator that there is no sound and “it’s choppy.” The investigator then attempts to replay the BWC and states the following: “Okay. So, I’m going to play it from 2:18. I understand this video is choppy. I’ll just say that it’s more important to pay attention to the sound in this video. So, if you could just pay attention to the sound that would be great.” After the investigator plays the BWC, she asks Respondent whether he hears “any audio in that portion of the video” and he responds: “pretty bad audio.” (CCRB Ex. 5A at 28-29)

Respondent informs the investigator that he could not hear the audio and asks her to play it again. The investigator plays it again and this time Respondent acknowledges that he can hear the audio. She asks Respondent: “did you hear somebody say, I don’t give a shit who searched you?” Respondent replies: “I hear it now.” The investigator follows up by asking Respondent if he recognizes the voice of the person that made the statement, and he says: “No.” She then asks Respondent if that was his voice and he replies: “I don’t remember.” The investigator proceeds to play this segment of the BWC again. She inquires once more: “And did that last replay aid in your ability to discern that voice?” Respondent answers: “I’m not sure. It sounds — there’s a lot of people.” (*Id.* at 29-30)

Respondent was interviewed by CCRB approximately nine months after the incident and he could not recall many details. It is important to emphasize that Respondent did not outright deny that it was his voice making the discourteous statement. Instead, he stated that he did not recognize the voice, and he could not remember if he made that statement. Contrary to CCRB’s argument at trial, this is a significant distinction in determining whether Respondent’s statement

was in fact untruthful. Reviewing the recording of that virtual interview, it is likely that Respondent could not positively identify his voice when listening to his BWC through a shared screen on an online meeting platform, especially when he described the audio as “choppy” at first.

This tribunal is mindful that Respondent has a strong interest in the outcome of this matter. Nevertheless, in his trial testimony, Respondent came across as genuine in his description of his CCRB interview. He was candid in acknowledging that he was mistaken during his CCRB interview and retracted his statement when given an opportunity to review his BWC in person. After reviewing the transcript and audio version of his CCRB interview, I find Respondent’s account plausible. I conclude, therefore, that the credible evidence has failed to establish that Respondent was being untruthful at his CCRB interview, when he stated that he did not recognize the voice on his BWC. To the extent that Specification 2 deals with that statement, I find Respondent not guilty.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent’s employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on October 7, 2015, has been found guilty of discourtesy. According to the Disciplinary Guidelines, the presumptive penalty for discourtesy is five penalty days; the mitigated penalty is training, and the aggravated penalty is

ten penalty days. There are no mitigating or aggravating factors present in this record to warrant a deviation from the presumptive penalty.

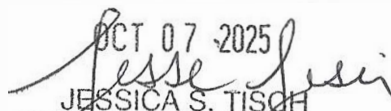
Although Respondent testified that he did not intend to insult anyone, the profanity he used was unprofessional and advanced no legitimate police purpose. Respondent is a Member of Service who has voluntarily assumed a higher standard of conduct. The use of coarse language in this situation was unnecessary and inappropriate. Based upon the foregoing, I find that a penalty of five vacation days is a sufficient sanction to address Respondent's misconduct.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

OCT 07 2025

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER MICHAEL COMPARATO
TAX REGISTRY NO. 959562
DISCIPLINARY CASE NO. C-031920

Respondent was appointed to the Department on October 7, 2015. On his three most recent annual performance evaluations, he was twice rated “Exceeds Expectations” for 2023 and 2024, and was rated “Exceptional” for 2022. He has been awarded one medal for Excellent Police Duty.

In 2023, Respondent forfeited ten (10) vacation days after being found guilty of failing to activate his body-worn camera in accordance with Department protocol and being discourteous and insubordinate during an official Department interview. He also pled guilty to failing to make complete Activity Log entries.

Respondent was placed on Level 1 CCRB Monitoring from February 2022 through January 2023 for having received three or more CCRB complaints over a one-year period.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials